



LEISURE RATE CONTRACT 2025

This **CONTRACT** is made and entered by and between the **Acacia Premier Hotel Kisumu**, hereinafter referred to as the **HOTEL** and the **Travel Agent** hereinafter referred to as the **CUSTOMER**.

Article 1 GENERAL

The **HOTEL** hereby agrees to lodge the **CUSTOMER'S**, guests at special or discounted rates (hereinafter referred to as **LEISURE RATES**) and the **CUSTOMER** hereby accepts the **HOTEL'S** offer for lodging its employees or guests traveling to Kisumu for leisure travel in any one of the rooms described herein and agrees to book such employees or guests their stay at the **HOTEL'S** rooms.

Article 2 DURATION OF THE AGREEMENT

The present **CONTRACT** shall remain valid for a period commencing on 1st January 2025 and ending on December 31, 2025 unless sooner terminated in accordance with the provisions stipulated below. It shall not be automatically extended and is to be re-negotiated in December 2025, for the following year.

Article 3 TYPES OF ROOMS AND RATES

3.1 Subject to availability, the types of rooms where the **HOTEL** shall accommodate the **CUSTOMER'S** employees or guests and the applicable daily rental charges per room shall be as follows:

Room Types	RESIDENTS				NON-RESIDENTS			
	Single	Double	Rack Rate (KES)		Single	Double	Rack Rates (USD)	
	Kshs	Kshs	Single	Double	USD	USD	Single	Double
STANDARD ROOM	14,875	16,575	17,500	18,500	149	166	175	195
SUPERIOR ROOM	15,725	17,425	18,500	19,500	157	174	185	205
BAY SUITE	33,000	33,000	37,000	37,700	330	330	370	370
PRESIDENTIAL SUITE	55,000	55,000	62,000	62,000	550	550	620	620



Note:

- ❖ The above rates are inclusive of breakfast and Internet
- ❖ Half Board Rate – A supplement of Kshs 3,000 or USD 30 per person will be charged on the Bed & Breakfast rate.
- ❖ Full Board Rate – A supplement of Kshs 6,000 or USD 60 per person will be charged on the Bed & Breakfast rate.
- ❖ For every 15 rooms booked as a group, the hotel will offer one single standard room on Bed & Breakfast, on complimentary basis.
- ❖ Children 0 to 4 years sharing Parents room up to a maximum of (1child) will be free.
- ❖ Children 5 to 12 years sharing own room up to a maximum of (2 children) will be charged 75% of the Double room rack rate.
- ❖ Children 5-12 years sharing Parents room up to a maximum of (1child) will be charged a supplement of Kshs 4,000 or USD 40.

3.2 The daily rental rates quoted under sub-article 3.1 above shall remain confidential and includes 7% service charge, 2% Levies and 16% Tax applicable to them by law.

3.3 Rates are net and non-commissionable. It is for leisure travel only up to 15 rooms per night and confirmed upon availability.

3.4 The above rates shall include free access to all the Health Club Facilities of the **HOTEL** except the spa.

3.5 Access to the Health Club Facilities shall entitle the guest to make free use of swimming pool and gymnasium.

Article 4 REVISION AND ADJUSTMENT OF RENTAL CHARGES

4.1 The above **Leisure RATES** are based on the **CUSTOMER** achieving a minimum of 300 room nights in 2025 “Annual Room Night Production”.

4.2 The above **LEISURE RATES** shall be subject to review on yearly basis.

4.3 The **HOTEL** reserves the right to adjust the room rates indicated above upon prior notice by giving advance notice to the **CUSTOMER**.



Article 5 RESERVATIONS, CANCELLATION, CHECK IN AND CHECK OUT

5.1 All reservations should be made directly through the **HOTEL** Reservation Department.

5.2 The Reservation Department of the **HOTEL** can be contacted through the addresses indicated below:

+254 709850000

E-mail: reservations@acaciapremier.com

5.3 The **CUSTOMER** or its guest may cancel its or his reservation subject to the following conditions:

- a. The **HOTEL** shall impose 100% charge of entire booking, if cancellation made two days before the date of arrival.
- b. The **HOTEL** shall impose 75% charge of entire booking, if cancellation made four days before the date of arrival.
- c. The **HOTEL** shall impose 25% charge of entire booking, if cancellation made seven days before the date of arrival.
- d. The **HOTEL** shall waive charges for entire booking, if cancellation made Fourteen days before the date of arrival.
- e. Rooming list to be provided Fourteen days before the arrival date.
- f. Advance payments for the booking needs to be made at the confirmation of the group.
- g. Any booking without advance payment or rooming list as per above will be cancelled from the hotel's booking system.

5.4 A guest shall be entitled to check in starting from 2:00p.m.local time and checkout 10:00 am on departure date.



- 5.5 Subject to availability, the **HOTEL** may give a room for guests who want to check in early at an extra charge amounting to 50% of the room's rent for the first day.
- 5.6 Rent shall be charged by the **HOTEL** for unused days in the event of an early check out.
- 5.7 Late check outs made between 12:00 noon and 6:00 P. M. on the day of departure shall entail a charge amounting to 60% of the room rack rate for one night.
- 5.8 Late checkout made later than 06:00 P.M on the date of departure shall be charged 100% of the room charge of the previous night.

Article 6 SETTLEMENT OF CHARGES

6.1 All guests must settle their bills prior to departure.

6.2 Credit agreement application needs to be completed and approved for monthly billing for Tours & Travel companies.

Article 7 TERMS AND CONDITIONS

7.1 UNAVAILABILITY OF ROOMS

In the event where the **HOTEL** cannot accommodate a guest with confirmed reservation due to fortuitous circumstance or factors beyond its control, the **HOTEL** shall provide the following:

- a. Accommodation at a comparable hotel located as closely as possible for the first night of displacement;
- b. One complimentary round trip ground transportation between the Hotel and the alternate hotel.
- c. The **HOTEL** will make the necessary arrangements for forwarding the displaced guest's telephone messages and mail.
- d. The **CUSTOMER** will receive credit for any guests displaced toward its Annual Room Night Production numbers for purposes of this agreement.



e. The **HOTEL** shall have no further obligations under this Clause in the event where a room becomes available at the Hotel for the displaced guest but such guest elects not to return to the Hotel.

f. Subject to availability, the **HOTEL** shall provide upgraded accommodations to a displaced guest in the event of his return to the hotel.

7.2 TAX AND OTHER CHANGES

The **HOTEL** reserves the right to change the rates in the event of any changes in the applicable government taxes, fees or assessments as well as any changes in applicable labor or service charges or fees.

7.3 RATES APPLICABLE TO GROUP BOOKING

Rates are applicable only to leisure bookings, subject to a maximum of 10 rooms per night. Conference and Group rates may vary based on the availability of rooms during the required period which shall be regulated by separate groups and conventions agreement.

7.4 CONFIDENTIALITY

a. The **CUSTOMER** shall not disclose Confidential Information to any third party (except with respect to contractors or travel agents providing travel requiring them).

b. The **HOTEL'S** Confidential Information “shall include its non-published, prospective and current service offerings and rates.

7.5 TERMINATION

Either party may terminate this **CONTRACT** for any reason by giving thirty (30) days’ advance written notice to the other party.

7.6 GOVERNING LAW AND FORUM

a. The present **CONTRACT** shall be governed by and construed in accordance with the relevant laws of Kenya.



- b. Any dispute arising from or in connection with the present **CONTRACT** shall be submitted to a court of competent jurisdiction in Kenya.
- c. A **CUSTOMER** enjoying diplomatic immunity hereby waives its immunity in respect of the enforcement of the terms and conditions of the present **CONTRACT**.

7.7 MISCELLANEOUS

- a. Except for an assignment to any parent corporation, subsidiary or successors-in-interest to either party (excluding competitors of the other party), neither party may assign any rights, duties, obligations or privileges under this Agreement without the written consent of the other party.
- b. This **CONTRACT** constitutes the entire agreement between the Parties and supersedes any and all prior agreements or representations, whether oral or written, pertaining to the content hereof and may not be amended except by a written document signed by all parties.
- c. No modification, amendment, supplement to or waiver of this **CONTRACT** or any of its provisions shall be binding upon any Party unless made in writing and signed by all parties.
- d. The Parties agree that for purposes of this Agreement and any amendment or modification thereto, or for any other notice or communication between the Parties, signatures sent or received by facsimile transmission will be considered as enforceable and valid as original signature by the party signing.
- e. For the avoidance of doubt, emails, including emails that bear an electronic “signature block” identifying the sender, do not constitute signed writings for purposes of this Agreement.
- f. The failure or delay of any party to this Agreement to enforce at any time any of the provisions of this Agreement, or to exercise any option which is hereby provided, or to require at any time performance of the provisions hereof, shall in no way be construed a waiver of, nor preclude the exercise of, any of the provisions of this Agreement.
- g. The undersigned expressly agree and warrant that they are authorized to sign and enter into this Agreement on behalf of the party for which they sign.



BANK DETAILS

Account Name: Simba Hospitality Management T/A Acacia Premier Hotel
Name of Bank: Standard Chartered Bank
Branch: Chiromo
Branch Code: 084
SWIFT Code: SCBLKENX
Account Number KES: 0104044118000
Account Number USD: 8704044118001

SIGNATURES OF THE PARTIES

FOR THE HOTEL

Signature: _____ **Date:**

Name: Loice Njoroge

Designation: Front Office Manager

Signature: _____ **Date:**

Name: Noah Odogo

Designation: Operations Manager

FOR THE CUSTOMER

Signature: _____ **Date:**

Name:

Designation:

Stamps